NCE EXAM PREP

Practice Exam 30

Domain 6

Legal & Ethical Compliance

34 Practice Questions | 45 minutes

A, B, C answer choices

Answer Key and Explanations included

> **Instructions.** Select the single best answer for each question. Record your answers separately. This domain practice set is drawn from Full-Length Practice Exam 05. Use the suggested 45-minute practice timer. Do not consult Part B until you complete Part A. These domain timings are editorial practice allocations, not official NBCC section limits.

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PART A — QUESTIONS

Choose one answer (A, B, or C) per question.

Question 1

> After a portal update, a blind client's screen reader can no longer navigate messages or forms. The vendor suggests that the client give a sibling the portal password. Clinic policy prohibits credential sharing and requires accessible, confidentiality-protective access.

What should the clinic do?

A) Provide a secure accessible alternative while the vendor remediates the portal, without requiring password sharing

B) Ask the sibling to use the client's account until the next software release

C) Restrict the client permanently to postal mail because accessibility support is optional

Question 2

> A vendor is scanning archived paper charts. The retention policy permits destruction of originals only after the electronic images are confirmed complete, legible, correctly indexed, and retrievable. A sample audit finds missing reverse sides and pages hidden by clips.

What should the records manager do?

A) Destroy the originals because the sample contains most of each chart

B) Keep only a short clinical summary for any chart with scanning defects

C) Stop destruction, reconcile and verify the scans, and authorize disposal only after quality requirements are met

Question 3

> An adult with a mild intellectual disability requests counseling and demonstrates choices when information is explained in plain language. No guardian or other legal representative is documented. Applicable law presumes adult capacity and requires accessible consent; a representative is involved only when legally authorized and necessary.

How should the counselor proceed?

A) Adapt the consent discussion, assess understanding, and obtain the client's decision unless authorized representation is required

B) Require a parent to consent because the client has an intellectual disability diagnosis

C) Refuse services because simplified consent materials cannot support a valid decision

Question 4

A tanker accident releases a hazardous plume near a counseling center. Local authorities order occupants to shelter in place. The written plan directs staff to move everyone to interior rooms, shut ventilation if instructed, account for occupants, and monitor official alerts. A staff member wants everyone to drive away immediately.

What should the practice leader do?

A) Evacuate by car because leaving the area is always safer than remaining indoors

B) Activate the shelter-in-place plan, account for people, and follow official instructions until the all-clear

C) Continue appointments in exterior offices so clients are not alarmed by the emergency response

Question 5

Which statement best describes informed consent in ongoing counseling?

A) It is revisited when material services, risks, fees, technology, or other terms change, with understanding documented as appropriate

B) It is complete after the initial signature and should not be reopened unless a court orders it

C) It needs to be discussed again only when the client independently asks for another explanation

Question 6

A hard-of-hearing client requests live captions for telehealth. The practice's approved platform can generate captions within the session without retaining a transcript, and the feature has passed security review.

What is the counselor's best response?

A) Require the client to bring a friend who can type summaries during the session

B) Refuse captioning because all automated text creates an unacceptable record

C) Explain the feature's limits and privacy, confirm the client's preference, and monitor caption accuracy during use

Question 7

An emergency department calls the on-call counselor about an unconscious established client. A segmented EHR record is restricted, but policy permits a logged "break-glass" override for direct emergency treatment, with a documented reason and access limited to relevant information.

What should the counselor do?

A) Wait for the client to regain consciousness before opening any restricted information

B) Use the authorized override, document the emergency reason, and review only information relevant to care

C) Ask a coworker to open the record under the coworker's credentials so the counselor is not audited

Question 8

A secure messaging system automatically deletes all messages after 30 days, but practice policy requires preservation of clinically significant exchanges. What is the best implementation approach?

A) Warn clients that no message will become part of the record and use the system unchanged

B) Establish approved archiving and documentation workflows that preserve required clinical content before use

C) Have counselors save screenshots of important messages on their personal phones

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Question 9

> A client turns 18 today. The clinic's proxy-access rule ends parental portal access automatically at adulthood unless the adult client signs a new authorization. A software update failed to remove the parent's existing access overnight.

What should the clinic do?

A) Leave access active until the adult client's next scheduled appointment

B) Send the adult client's new password to the parent to preserve continuity

C) Disable the proxy access promptly and ask the adult client whether new authorization is desired

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Question 10

> A supervisor opens an associate's note by using the associate's password, rewrites the plan, and then asks the associate to submit it. The EHR policy requires the original author and every supervisory addition to remain identifiable in the audit trail.

How should the note be handled?

A) The supervisor should use personal credentials, make an attributed addition or co-signature, and preserve the original audit history

B) The supervisor should keep using the associate's account so the note displays only one author

C) The associate should delete the original and create a new note containing the supervisor's language

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Question 11

> A redesigned counseling intake form requires every client to enter a Social Security number and upload a driver's license. The practice has no payer, clinical, or legal need for either item, and its privacy program requires limiting collected data to what is necessary.

What should the privacy officer recommend?

A) Keep both fields because additional identifiers might become useful in a future dispute

B) Remove the unnecessary requirements and securely address previously collected excess data under policy

C) Make the fields mandatory but add a notice that the information may never be used

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Question 12

> An uninsured client schedules an intake eight business days in advance and will pay personally. The applicable federal rule requires a written good faith estimate within one business day when services are scheduled three to nine business days ahead. The manager wants to provide a price range after the first visit.

What should the practice do?

A) Wait until after the intake because the final treatment frequency is not yet known

B) Provide the required written estimate on time, include expected charges, and retain appropriate documentation

C) Give a verbal hourly rate now and issue the written estimate only if the client disputes a bill

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Question 13

> A pre-employment screening produces an exact-name match for a therapist on the federal List of Excluded Individuals and Entities. Federal rules prohibit program payment for services furnished by an excluded person, but the practice has not yet confirmed whether the listing belongs to the applicant.

What should the compliance officer do?

A) Assign clients immediately and refund federal payments only if the match is later confirmed

B) Hold federal-program work and claims while verifying the applicant's identity and exclusion status

C) Bill the applicant's work under another counselor's identifier until verification is complete

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Question 14

Which action best maintains a professional counselor's scope when a client reports troubling medication side effects?

A) Explore the symptoms and coordinate with an authorized prescriber rather than recommending a dosage change

B) Suggest a lower dose verbally as long as the counselor does not put the recommendation in writing

C) Tell the client to skip the medication until the next counseling appointment

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Question 15

> The current custody order for a 13-year-old gives both parents joint legal custody and expressly requires both parents' consent for nonemergency health care. One parent asks a counselor to begin weekly treatment without contacting the other parent. No emergency is present.

What should the counselor do?

A) Begin because the parent who scheduled the appointment has physical custody that week

B) Obtain the other parent's consent or authoritative clarification before starting nonemergency treatment

C) Ask the adolescent to choose which parent's authorization controls the decision

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Question 16

A community clinic is evaluating an artificial intelligence overlay that labels clients as "deceptive" or "disengaged" from gaze, facial movement, and voice. The vendor states that the model has not been validated for clinical decisions or for neurodivergent and multilingual clients, and clients have not been told about it.

How should a counselor respond to a director's instruction to use the labels during sessions?

A) Use a label only when it agrees with the counselor's initial impression

B) Show each label to the client after the session and ask whether it seems accurate

C) Disable the tool and rely on direct assessment until validity, privacy, consent, and governance requirements are met

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Question 17

An agency offers a supervisor 8% of every claim billed by each supervisee. The licensing rule prohibits supervision compensation that is contingent on a supervisee's clinical volume because it can impair independent evaluation.

What should the supervisor do?

A) Accept because disclosing the percentage to supervisees removes the conflict

B) Accept if the supervisor audits every supervisee note before a claim is filed

C) Decline the percentage arrangement and establish compensation that is not tied to supervisee billing

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Question 18

A client arrives with a trained service dog. The building has a no-pets rule, but the applicable disability law requires access unless an individualized assessment shows a direct threat or fundamental alteration. The dog is under control, and no such problem is present.

What should the practice do?

A) Deny entry because another visitor might report a dog allergy in the future

B) Allow the service dog without a pet surcharge and address only actual behavior if a problem arises

C) Require the client to provide medical records proving the disability before each visit

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Question 19

A graduate intern arrives to observe a counseling session as part of training. Clinic policy permits observation only after the client gives advance, voluntary consent and states that refusal will not affect services. The client was not told that an observer would attend.

What should the counselor do?

A) Keep the observer out unless the client receives the required information and freely agrees before observation

B) Allow observation because staff training is an internal clinic purpose

C) Let the intern observe and ask the client to sign consent after the session

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Question 20

A licensed counselor forms a professional corporation. State rules require a board certificate of authorization before the entity advertises or provides counseling, and the counselor's individual license does not satisfy the entity requirement. The counselor has already signed an office lease.

What should the counselor do?

A) Begin services under the individual license because the lease creates a business obligation

B) Advertise the corporation as "authorization pending" and accept cash-only clients

C) Obtain the entity authorization before advertising or providing counseling through the corporation

Question 21

A counselor loses a hardware security key that can authenticate access to the EHR. The key contains no client files, but security policy requires immediate revocation because possession may permit account access.

What should the counselor do?

A) Wait to see whether anyone attempts access because no client record is stored on the key

B) Report the loss, revoke the key, review relevant access activity, and obtain a replacement

C) Send staff the key's printed label so they can recognize it if someone uses it

Question 22

A client invites the counselor to a culturally important graduation ceremony. Practice policy does not categorically forbid attendance but requires assessment of client meaning, alternatives, foreseeable benefits and harms, role effects, and documentation.

What should the counselor do?

A) Discuss those factors with the client, make a client-centered boundary decision, and document the reasoning

B) Accept automatically because declining any culturally important invitation is unethical

C) Terminate counseling before the ceremony so attendance cannot affect professional boundaries

Question 23

A client reports that a spouse opens mail sent to the home. The client asks the clinic to send billing correspondence to a post office box and not to leave messages at the home number. The applicable privacy rule requires reasonable requests for confidential communications to be accommodated.

What should the clinic do?

A) Record the request and use only the designated address and communication methods

B) Require the client to prove domestic abuse before changing any contact method

C) Continue using the home address for billing while using the post office box for clinical mail

Question 24

> An electronic intake system presents optional authorizations with every checkbox already selected. Clicking "Continue" records agreement to all uses without requiring clients to review or affirm each choice.

What change is most appropriate?

A) Keep the design because clients can search for and clear any box they dislike

B) Require affirmative, unselected choices with readable terms and preserve the resulting consent record

C) Collect the authorizations after the first session so the initial screen remains brief

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Question 25

Which control best protects claim integrity when billing software automatically suggests procedure codes?

A) Submit every suggested code because the software vendor is responsible for coding accuracy

B) Select the highest-paying suggested code whenever more than one code appears plausible

C) Compare each code with the service, documentation, and payer rules before claim submission

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Question 26

> A client requests a copy of personal records by ordinary unencrypted email after the practice offers a secure portal. The applicable access rule permits the client to choose unencrypted email after receiving a brief risk warning and confirming the request.

How should the practice respond?

A) Refuse because a secure portal is available and therefore must be used

B) Send the records immediately without discussing the transmission risk

C) Warn the client, confirm the request and address, apply reasonable safeguards, and send the copy as directed

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Question 27

What is the most appropriate step before donating or recycling a laptop that previously stored electronic client information?

A) Use an approved sanitization or destruction method and verify that protected data cannot be recovered

B) Delete the visible client folders and place the laptop in an ordinary electronics donation bin

C) Remove the counselor's user profile while leaving the operating system and recovery partition intact

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Question 28

A state's licensing rule states that an inactive counseling license does not authorize any professional counseling. Reactivation requires board approval before services resume. A nationally certified counselor with an inactive state license is offered a weekend counseling shift.

What should the counselor do?

A) Accept because national certification replaces state licensure for a short shift

B) Accept after informing clients that the state license is currently inactive

C) Complete board reactivation before providing professional counseling

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Question 29

An applicant gives a clinic a PDF image of a counseling license. The licensing board's primary-source registry shows the same license number with a different middle name and an active practice restriction. Clinic policy requires primary-source verification and resolution of identity discrepancies before client assignment.

What should the clinical director do?

A) Delay assignment and resolve the applicant's identity and license status through authoritative sources

B) Accept the PDF because possession of a license image proves the applicant's current authority

C) Ignore the name and restriction because the license number appears in the board registry

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Question 30

An unlicensed program director asks a licensed counselor to let a facility list the counselor as clinical director for a regulatory renewal. The counselor would not supervise staff, review records, or hold operational authority. The required attestation certifies that the named clinician actually performs those responsibilities.

What should the counselor do?

A) Agree if the facility pays a monthly fee for use of the license information

B) Agree after arranging one brief telephone call with the director each month

C) Refuse the false designation and do not permit use of the counselor's license for the attestation

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Question 31

A practice uses a generative artificial intelligence tool to draft a compliance manual. One section states that the practice's state has no breach-notification requirement and cites a court decision that does not exist.

What should the compliance officer do?

A) Verify every legal claim against authoritative sources and obtain qualified review before adopting the manual

B) Add a general artificial intelligence disclaimer and distribute the manual without further review

C) Adopt the manual temporarily and correct its legal statements only if an incident occurs

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Question 32

A group practice plans to enroll every client automatically in recurring credit-card payments. Current agreements do not authorize recurring charges. The applicable consumer rule requires explicit consent, a disclosed charge schedule, and a clear cancellation method.

What should the practice do?

A) Obtain voluntary authorization and provide the required terms before initiating recurring charges

B) Announce the change by email and enroll any client who does not object within seven days

C) Process one recurring charge and request retroactive authorization at the next appointment

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Question 33

A counselor and client live in a small island community and may see each other at an annual public festival. The client asks whether the counselor will say hello. Practice policy permits the parties to plan for incidental encounters but prohibits revealing the counseling relationship.

What is the counselor's best response?

A) State that ethical rules require the counselor to ignore the client in every public setting

B) Discuss the client's privacy preferences, agree on an encounter plan, and avoid revealing the professional relationship

C) Greet the client by explaining to nearby people that they know each other through counseling

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Question 34

A subpoena requires a treating counselor to appear and testify about factual observations. An attorney also asks the counselor to state that workplace harassment legally caused the client's condition. The counselor has not performed a forensic causation evaluation, and the subpoena does not appoint the counselor as an expert.

How should the counselor respond?

A) Give the causation opinion because treatment notes contain the client's account of work events

B) Refuse to answer every question because a treating counselor can never testify

C) Give truthful factual testimony within the treatment role and decline unsupported expert causation opinions

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PART B — ANSWER KEY AND EXPLANATIONS

Answers match the numbered items in Part A.

Question 1 — Correct: A

Correct Answer: Provide a secure accessible alternative while the vendor remediates the portal, without requiring password sharing

Explanation: Accessibility and confidentiality should be preserved together rather than forcing the client to surrender personal credentials. A secure interim method supports current access while the practice corrects the portal defect.

Question 2 — Correct: C

Correct Answer: Stop destruction, reconcile and verify the scans, and authorize disposal only after quality requirements are met

Explanation: The sample has already shown that the electronic copy is incomplete, so destroying originals would risk permanent record loss. Verification of completeness, legibility, indexing, and retrieval must occur before disposal under the stated policy.

Question 3 — Correct: A

Correct Answer: Adapt the consent discussion, assess understanding, and obtain the client's decision unless authorized representation is required

Explanation: The supplied law presumes adult capacity and favors accessible, supported decision-making. A diagnosis alone does not authorize a parent to decide or justify denying the client an opportunity to give informed consent.

Question 4 — Correct: B

Correct Answer: Activate the shelter-in-place plan, account for people, and follow official instructions until the all-clear

Explanation: Evacuating into the hazardous plume would contradict the specific public-safety order and written plan. Sheltering, accounting for occupants, and monitoring authorities are the appropriate emergency actions under the supplied facts.

Question 5 — Correct: A

Correct Answer: It is revisited when material services, risks, fees, technology, or other terms change, with understanding documented as appropriate

Explanation: Informed consent is a continuing communication process, not merely an intake signature. Material changes should be explained so the client can make an updated, meaningful choice.

Question 6 — Correct: C

Correct Answer: Explain the feature's limits and privacy, confirm the client's preference, and monitor caption accuracy during use

Explanation: The approved, nonretained caption feature can support accessible participation when the client understands its limits. Monitoring accuracy preserves clinical accountability without forcing the client to use an informal companion or rejecting an appropriate technology.

Question 7 — Correct: B

Correct Answer: Use the authorized override, document the emergency reason, and review only information relevant to care

Explanation: The policy specifically permits audited emergency access for direct treatment. Waiting could impair care, while using another person's credentials would defeat individual accountability and the break-glass audit.

Question 8 — Correct: B

Correct Answer: Establish approved archiving and documentation workflows that preserve required clinical content before use

Explanation: Automatic deletion conflicts with the practice's obligation to retain clinically significant communications. An approved preservation workflow resolves that conflict without placing protected screenshots on personal devices.

Question 9 — Correct: C

Correct Answer: Disable the proxy access promptly and ask the adult client whether new authorization is desired

Explanation: The client's adulthood ends the existing proxy authority under the stated rule. Promptly disabling access protects the new adult's privacy while preserving the option to authorize the parent again by choice.

Question 10 — Correct: A

Correct Answer: The supervisor should use personal credentials, make an attributed addition or co-signature, and preserve the original audit history

Explanation: Individual authentication and attributed supervisory changes preserve accountability for who authored each part of the record. Shared credentials or deletion would make the audit trail inaccurate and obscure the associate's original entry.

Question 11 — Correct: B

Correct Answer: Remove the unnecessary requirements and securely address previously collected excess data under policy

Explanation: Collecting sensitive identifiers without a defined need creates avoidable privacy and security risk. A notice does not cure unnecessary mandatory collection, while removal and appropriate handling of existing data follow the stated minimization program.

Question 12 — Correct: B

Correct Answer: Provide the required written estimate on time, include expected charges, and retain appropriate documentation

Explanation: The supplied timing rule applies because the uninsured client scheduled eight business days ahead. A verbal range after care would not satisfy the written, prospective estimate requirement.

Question 13 — Correct: B

Correct Answer: Hold federal-program work and claims while verifying the applicant's identity and exclusion status

Explanation: The potential match must be resolved before the practice risks assigning federally reimbursed work to an excluded person. Immediate assignment or billing under another identifier would evade rather than satisfy the payment prohibition.

Question 14 — Correct: A

Correct Answer: Explore the symptoms and coordinate with an authorized prescriber rather than recommending a dosage change

Explanation: Counselors may address the client's experience and support coordination but do not independently prescribe or adjust medication. Making an unwritten dosing recommendation or directing the client to stop medication would still exceed scope.

Question 15 — Correct: B

Correct Answer: Obtain the other parent's consent or authoritative clarification before starting nonemergency treatment

Explanation: The controlling order explicitly requires both parents' consent for this nonemergency care. Physical custody for the week and the adolescent's preference do not alter the legal-consent provision supplied in the item.

Question 16 — Correct: C

Correct Answer: Disable the tool and rely on direct assessment until validity, privacy, consent, and governance requirements are met

Explanation: The vendor has expressly disclaimed the model's clinical validity for relevant populations, and clients have not received essential information. Using an unsupported deception label could bias care, so human assessment and formal review must precede implementation.

Question 17 — Correct: C

Correct Answer: Decline the percentage arrangement and establish compensation that is not tied to supervisee billing

Explanation: The rule directly prohibits compensation contingent on supervisee clinical volume because it may distort independent supervision. Disclosure or more note review does not remove the prohibited financial incentive.

Question 18 — Correct: B

Correct Answer: Allow the service dog without a pet surcharge and address only actual behavior if a problem arises

Explanation: The dog is controlled, and the scenario supplies no individualized direct threat or fundamental alteration. Speculative concerns and demands for medical records do not justify treating a service animal as a prohibited pet.

Question 19 — Correct: A

Correct Answer: Keep the observer out unless the client receives the required information and freely agrees before observation

Explanation: Internal training does not replace the advance, voluntary consent required by clinic policy. Seeking permission after observation would occur only after the client's privacy had already been compromised.

Question 20 — Correct: C

Correct Answer: Obtain the entity authorization before advertising or providing counseling through the corporation

Explanation: The individual license and signed lease do not replace the separate entity approval required by the stated rule. Advertising as pending or taking only cash clients would still involve unauthorized corporate practice.

Question 21 — Correct: B

Correct Answer: Report the loss, revoke the key, review relevant access activity, and obtain a replacement

Explanation: The key's risk is its authentication capability, not local storage of client files. Prompt revocation and review prevent or detect account access and comply with the stated incident policy.

Question 22 — Correct: A

Correct Answer: Discuss those factors with the client, make a client-centered boundary decision, and document the reasoning

Explanation: The policy calls for a contextual analysis rather than automatic acceptance or prohibition. Exploring cultural meaning, alternatives, and role effects supports a defensible decision focused on client welfare.

Question 23 — Correct: A

Correct Answer: Record the request and use only the designated address and communication methods

Explanation: The scenario states that the reasonable confidential-communication request must be accommodated. Requiring proof not called for by the rule or continuing to use the unsafe home address would defeat the client's requested protection.

Question 24 — Correct: B

Correct Answer: Require affirmative, unselected choices with readable terms and preserve the resulting consent record

Explanation: Preselected authorizations obscure whether the client made a knowing, voluntary choice. An affirmative design with understandable terms and a reliable record better supports valid electronic consent.

Question 25 — Correct: C

Correct Answer: Compare each code with the service, documentation, and payer rules before claim submission

Explanation: Automated suggestions do not transfer claim responsibility from the practice. Review against the actual service and documentation prevents unsupported coding, including selection based on reimbursement rather than accuracy.

Question 26 — Correct: C

Correct Answer: Warn the client, confirm the request and address, apply reasonable safeguards, and send the copy as directed

Explanation: The scenario expressly permits the client to select unencrypted email after acknowledging the risk. Refusing the requested method would disregard the access right, while sending without warning would omit a required safeguard.

Question 27 — Correct: A

Correct Answer: Use an approved sanitization or destruction method and verify that protected data cannot be recovered

Explanation: Ordinary deletion and profile removal may leave recoverable information on the device or its recovery media. Verified sanitization or destruction addresses the full data lifecycle before control of the laptop is transferred.

Question 28 — Correct: C

Correct Answer: Complete board reactivation before providing professional counseling

Explanation: The supplied rule makes an inactive state license insufficient authority to practice, regardless of national certification or the shift's duration. Client disclosure cannot convert unauthorized practice into lawful practice.

Question 29 — Correct: A

Correct Answer: Delay assignment and resolve the applicant's identity and license status through authoritative sources

Explanation: The primary-source record raises material questions about both identity and authorization to practice. A copied document or matching number cannot override an unresolved name discrepancy and active board restriction.

Question 30 — Correct: C

Correct Answer: Refuse the false designation and do not permit use of the counselor's license for the attestation

Explanation: The attestation certifies actual clinical responsibility that the counselor would not perform. Payment or occasional calls cannot make the regulatory statement truthful or satisfy the required oversight role.

Question 31 — Correct: A

Correct Answer: Verify every legal claim against authoritative sources and obtain qualified review before adopting the manual

Explanation: A fabricated citation and unsupported legal conclusion demonstrate that the draft cannot serve as a compliance authority. Human verification against current primary sources and qualified review are necessary before the practice relies on the manual.

Question 32 — Correct: A

Correct Answer: Obtain voluntary authorization and provide the required terms before initiating recurring charges

Explanation: The scenario requires explicit consent, scheduling information, and a cancellation method before recurring billing begins. Silence after an email or retroactive permission would not establish valid authorization for the charges.

Question 33 — Correct: B

Correct Answer: Discuss the client's privacy preferences, agree on an encounter plan, and avoid revealing the professional relationship

Explanation: Planning for likely incidental contact respects the client's preferences while protecting confidentiality in a close community. A rigid rule of always ignoring the client may itself feel conspicuous, while announcing the counseling relationship would disclose protected information.

Question 34 — Correct: C

Correct Answer: Give truthful factual testimony within the treatment role and decline unsupported expert causation opinions

Explanation: The counselor must respond within the lawful testimonial scope while remaining accurate about professional role and competence. Treatment notes do not by themselves support a forensic legal-causation opinion, and the subpoena does not justify a blanket refusal to testify.
